

# The Central Industrial Security Force (Amendment and Validation) Act, 1999

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The Central Industrial Security Force (Amendment and Validation) Act, 1999

UNION OF INDIA

India

The Central Industrial Security Force (Amendment and Validation) Act, 1999

Act 40 of 1999

Published in Gazette of India on 29 December 1999

Not commenced

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An Act further to amend the Central Industrial Security Force Act, 1968, and to validate certain revision petitions disposed of under the rules made under the said Act.

BE it enacted by Parliament in the Fiftieth Year of the Republic of India as follows:

1.

Short title.

This Act may be called the Central Industrial Security Force (Amendment and Validation) Act, 1999.

2.

Amendment of long title.

In the Central Industrial Security Force Act, 1968 (50 of 1968) (hereinafter referred to as the principal Act), for the long

title, the following long title shall be substituted, namely:

"An Act to provide for the constitution and regulation of an armed force of the Union for the better protection and security of industrial undertakings owned by the Central Government, certain other industrial undertakings, employees of all such undertakings and to provide technical consultancy services to industrial establishments in the private sector and for matters connected therewith."

3.

Amendment of section 2.

In section 2 of the principal Act, in sub-section (1), after clause (c), the following clause shall be inserted, namely:

(ca)

"industrial establishment" means an industrial undertaking or a company as defined under section 3 of the Companies Act, 1956 (1 of 1956) or a firm registered under section 59 of the Indian Partnership Act, 1932 (9 of 1932) which is engaged in any industry, or in any trade, business or service;

4.

Amendment of section 3.

In section 3 of the principal Act, in sub-section (1), the words "and to perform such other duties as may be entrusted to it by the Central Government" shall be inserted at the end.

5.

Amendment of section 8.

In section 8 of the principal Act,

(i)

in clause (i), after the word "remove", the words ", order for compulsory retirement of ", shall be inserted;

(ii)

in clause (ii), after sub-clause (c), the following sub-clauses shall be inserted, namely:

"(d) withholding of increment of pay with or without cumulative effect;

(e)

withholding of promotion;

(f)

censure."

6.

Amendment of section 9.

In section 9 of the principal Act,

(i)

in sub-section (1), for the words, brackets and figure "subject to the provisions of sub-section (3)", the words, brackets, figures and letters "subject to the provisions of sub-section (2A), sub-section (2B) and sub-section (3)" shall be substituted;

(ii)

after sub-section (2), the following sub-sections shall be inserted, namely:

"(2A) Any enrolled member of the Force aggrieved by an order passed in appeal under sub-section (1) may, within a period of six months from the date on which the order is communicated to him, prefer a revision petition against the order to such authority as may be prescribed and in disposing of the revision petition, the said authority shall follow such procedure as may be prescribed.

(2B)

The authority, as may be prescribed for the purpose of this sub-section, on a revision petition preferred by an aggrieved enrolled member of the Force or suo moto, may call for, within a prescribed period, the records of any proceeding under section 8 or sub-section (2) or sub-section (2A) and such authority may, after making inquiry in the prescribed manner, and subject to the provisions of this Act, pass such order thereon as it thinks fit.";

(iii)

in sub-section (3), for the words, figures and brackets "under section 8 or under sub-section (2)", the words, figures, brackets and letters "under section 8, sub-section (2), sub-section (2A) or sub-section (2B)" shall be substituted.

7.

Amendment of section 10.

In section 10 of the principal Act, after clause (e), the following clauses shall be inserted, namely:

"(f) to provide technical consultancy services relating to security of any private sector industrial establishments under section 14A;

(g)

to protect and safeguard the organisations owned or funded by the Government and the employees of such organisations as may be entrusted to him by the Central Government;

(h)

any other duty which may be entrusted to him by the Central Government from time to time."

8.

Insertion of new section 14A.

After section 14 of the principal Act, the following section shall be inserted, namely:

"14A. Technical Consultancy Service to industrial establishments.

(1)

Subject to any general directions which may be issued by the Central Government, it shall be lawful for the Director-General, on a request received from the Managing Director of an industrial establishment in the private sector or any other person authorised by him in this behalf, to direct the members of the Force to provide technical consultancy services relating to security, to such industrial establishments in such manner and on payment of such fee as may be prescribed.

(2)

The fee received under sub-section (1) shall be credited to the Consolidated Fund of India.

Explanation.

For the purposes of this section, the expression "Managing Director", in relation to an industrial establishment, means the person (whether called general manager, manager, chief executive officer or a partner of a firm or by any other name) who exercises control over the affairs of the establishment."

9.

Amendment of section 22.

In section 22 of the principal Act, in sub-section (2),

(i)

after clause (ggg), the following clauses shall be inserted, namely:

"(gggg) prescribing authority under sub-section (2A) of section 9 and the procedure to be followed by such authority in disposing of the revision petition;

(ggggg)

prescribing authority under sub-section (2B) of section 9, the period within which such authority may call for the records and the manner in which such authority may make inquiry;"

(ii)

in clause (h), the word "and" occurring at the end shall be omitted;

(iii)

after clause (h), the following clause shall be inserted, namely:

"(hh) the manner in which and the fee on payment of which the technical consultancy services shall be provided under sub-section (1) of section 14A; and".

10.

Validation of the disposal of certain revision petitions.

Notwithstanding any judgment, decree or order of any court to the contrary, rule 49 of the Central Industrial Security Force Rules, 1969 published with the notification of the Government of India in the Ministry of Home Affairs number S.O. 4632, dated the 12th November, 1969 shall be deemed to be, and to have always been, made under the principal Act as amended by this Act as if the principal Act as so amended had been in force at all material times before the commencement of this Act and accordingly the disposal of any revision petition under the said rule 49 before the commencement of this Act or any order made or purporting to have been made or any action or thing taken or done in or under such petition shall not be deemed to be invalid or ever to have become invalid merely on the ground that the Central Government had no power under the principal Act to make the said rule 49.

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